2069

Executive Order

JEMEZ NATIONAL FOREST

NEW MEXICO

The Proclamation dated September 17, 1913, withdrawing for classification under the Act of June 25, 1910 (36 Stat., 847), certain areas which were excluded thereby from the Jemez National Forest, New Mexico, on December 1, 1913, and providing for their subsequent restoration, is hereby amended to revoke such withdrawal and to admit of the restoration of the public lands therein in a manner authorized by the Act of September 30, 1913 (38 Stat., 113).

It appearing proper and necessary, in the interest of equal opportunity and good administration, that all of the lands excluded by said Proclamation subject to disposition should be restored to settlement in advance of entry, it is hereby ordered, pursuant to the authority reposed in me by the aforesaid Act of September 30, 1913, that such lands, subject to valid rights and the provisions of existing withdrawals, shall be open to actual settlers only under the provisions of the homestead laws for a period of twenty-eight days from and including nine o'clock a. m., standard time, on the fifty-sixth day from and after the date of this order, and thereafter to entry and disposition under any and all of the public land laws applicable thereto.

Persons who go upon any of the lands to be restored hereunder and perform any act of settlement thereon from and including the date of this order until nine o'clock a. m., standard time, on the fifty-sixth day from and after the date hereof, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, will be considered and dealt with as trespassers and preference will be given the prior legal applicant, notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view to thereafter going upon and making settlement thereon when the lands shall become subject thereto in accordance with this order. Persons having prior settlement rights, as above defined, will be allowed to make entry in conformity with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
28 October, 1914.

[No. 2069.]